

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006481

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: WELLS FRARGO BANK,
N.A.

vs.

DEFENDANT: GARY SATTIN, AN
INDIVIDUAL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

The unopposed motion for summary judgment by plaintiff Wells Fargo (“Plaintiff”) is GRANTED. (Code Civ. Proc., § 437c, subds. (c) and (p)(1).) Plaintiff has met its burden showing no triable issues of material fact exist as to any of the alleged causes of action.

Facts

Plaintiff filed this action on December 2, 2025, against defendant Gary Sattin (“Defendant”) alleging a cause of action for breach of contract.

Defendant applied to Plaintiff for a credit card account and entered into a written agreement with Plaintiff to be bound by the terms and conditions set forth in the Cardmember Agreement, including that use of the issued card constituted acceptance of the agreement. (Plaintiff’s Separate Statement of Undisputed Material Facts (“SS”) Nos. 1-3.) Defendant used the credit card, making charges and payments, and incurred a balance. (SS Nos. 6.) Plaintiff sent Defendant monthly statements for each billing period. (SS No. 7.) There is no record of Defendant asserting an objection to the amount of the balance due and owing on the monthly statements that were provided to the Defendant or any active lawsuits for unresolved disputes on this account. (SS Nos. 9-10.)

The last payment applied to the account or transaction made by Defendant was on December 2, 2024. (SS No. 11.) Thereafter, no further payments were made by the Defendant and therefore, under the terms of the Cardmember Agreement, Defendant was in default. (SS No. 12.) Defendant owes Plaintiff \$20,076.88 on the principal balance, which remains unpaid. (SS No. 13.) Defendant has admitted these facts in response to Plaintiff’s Request for Admissions. (SS No. 15.)

Standard for Summary Judgment

A plaintiff moving for summary judgment meets his or her burden of proof by showing there is no defense to each cause of action by proving each element of the cause of action. (Code Civ. Proc., § 437c(p)(1); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 [“summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by defendant as well as prove each element of his own cause of action. . . . All that the plaintiff need do is to ‘prove [] each element of the cause of action’ ”].) Once a plaintiff meets this burden, the burden shifts to defendant “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c(p)(1).)

Discussion

Plaintiff claims it is entitled to summary judgment against Defendant on the grounds that there is no defense to this action. Plaintiff alleges a breach of contract against Defendant.

The elements of a breach of contract cause of action are: (1) the existence of a contract; (2) the plaintiff's performance or excuse for nonperformance of the contract; (3) defendant's breach; and (4) damage to plaintiff resulting from the breach. (*State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449 (“*ReadyLink*”).)

Here, Plaintiff proffers evidence of the agreement for the credit card, that Plaintiff performed its obligation under the terms of the agreement by extending funds to Defendant for various goods, services, and cash advances, that Defendant failed to honor the obligations under the terms of the credit card agreement by failing to pay the sums owed to Plaintiff, and that Plaintiff is owed a sum certain in the amount of \$20,076.88. (SS Nos. 1-15.)

The Court finds that Plaintiff has met its burden establishing each element of its cause of action for breach of contract. (SS No. 1-15.) Without controverting evidence, the Court grants Plaintiff's motion for summary judgment.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008456

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: TOWN OF FAIRFAX

vs.

DEFENDANT: GEORGE W. HOLLISTER,
ET AL.

NATURE OF PROCEEDINGS: MOTION – OTHER: PREJUDGMENT POSSESSION

RULING

Town of Fairfax filed a motion for prejudgment possession to acquire reversionary rights in properties identified as the Hollister Parcel and the Cascade Parcel. All parties were served and in fact, default has been requested and entered as to all defendant parties. Additionally, there has been no opposition to this motion. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

For these reasons, the court shall grant Town of Fairfax's motion and sign the proposed judgment in condemnation.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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